

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition

Acquisition Plan Action ID: 36C241-26-AP-2692

1. **Contracting Activity:** Department of Veterans Affairs, VISN 01, Jamaica Plain VA Medical Center, 150 S Huntington Ave, Boston, MA 02130
2. **Nature and/or Description of the Action Being Approved:** This justification supports awarding a sole-source contract from one responsible source, WBRC, Inc. for a logical follow-on continuation of the previously completed feasibility study and will advance the project at Jamaica Plain VA Medical Center from concept-level validation into full a construction-ready design for the Neuroscience Research Renovation requirement. WBRC is the most qualified and the most knowledgeable firm for this requirement as they have already been on site and have provided the VA with a detailed analysis.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The architectural and engineering A(/E) shall prepare design, construction documents, and provide construction period services to install a new freezer farm on the second floor of Building 10 at the Jamaica Plain VA Medical Center and incorporate the basis of designs and findings of the VA JP Neuroscience Freezer Farm Feasibility Study Concept Design prepared by WBRC on 02-27-2026. This project will install a minimum of thirty 80-degree freezers, a small office and a laboratory space in approximately 3,855 square feet on the second floor of Building 10. The VA has selected to move forward with Concept Plan displaying a layout of 60 to 65 freezers in the space.

In addition to designing the space for the proposed freezers, the A/E will be responsible for reviewing all existing applicable codes and guidelines necessary to design a complete system with all operational functionality and required equipment, such as temperature recorders, remote alarms, storage baskets, auxiliary water cooling, etc. The A/E is responsible for all elements of design and engineering. This includes, but not limited to, physical security, resiliency, civil, structural, architectural, plumbing, electrical, mechanical, communication systems, and fire suppression/protection.

4. **Statutory Authority Permitting Other than Full and Open Competition:** This acquisition is conducted under the authority of 10 U.S.C. 3204(a)(1), 41 U.S.C. 3304(a)(1), and FAR 6.103-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.
5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** WBRC is uniquely qualified, having already completed a thorough feasibility study under contract 36C24126P0160. Their work included infrastructure capacity evaluation,

development of concept-level architectural layouts, and preparation of multidisciplinary feasibility narratives confirming the viability of the proposed freezer farm installation. WBRC's on-site assessments and direct coordination with VA end users have provided them with a detailed understanding of the project's complexities, existing site conditions, and stakeholder-approved layout direction—elements critical to the engineering design effort.

Key tasks performed by WBRC under the previous contract include:

- Documentation of existing conditions
- Site verification
- Development of conceptual layout alternatives
- Coordination with VA stakeholders
- Production of accepted concept-level architectural layouts
- Creation of a multidisciplinary feasibility narrative

As the originator of the technical basis-of-design, WBRC possesses unique insight into space constraints, infrastructure assumptions, utility limitations, and feasibility-phase decisions validated in collaboration with VA end users. Awarding this contract to another firm would necessitate repeating feasibility-level evaluations and redeveloping concept documentation, resulting in substantial additional costs and unacceptable delays to implementing the freezer storage infrastructure that supports neuroscience research operations.

Adherence to the Brooks Act is a foundational element of this justification. The Brooks Act mandates qualifications-based selection for all A/E services contracts, requiring agencies to select the most qualified firm rather than make a selection based solely on cost. Throughout its prior engagements, WBRC has been selected because of demonstrated competence, technical expertise, and consistent delivery of high-quality results at VA Medical Centers, including Boston. This qualifications-based procurement process ensures compliance with federal procurement standards and reinforces the VA's commitment to securing the best possible expertise and continuity for complex A/E requirements such as these. Selection of WBRC through a sole-source contract not only upholds the Brooks Act, but also preserves the integrity and efficiency of the project, ensuring optimal outcomes for the Government.

Awarding a Firm Fixed Price contract to WBRC will retain essential project knowledge, prevent unnecessary duplication of effort, and deliver cost savings, ultimately serving the best interest of the Government and aligning with statutory requirements for architectural and engineering services acquisition.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as possible (including whether a notice was or will be publicized as required by RFO Part 5 and, if not, which exception under RFO Part 5 applies):

Market Research was performed to assess the availability of SDVOSB/VOSB A/E Firms and determined that, while other qualified firms exist, none possess the project-specific knowledge and experience of the existing conditions needed to perform without significant learning curve costs and delays. Competing this requirement at this stage would result in substantial duplication of effort and is not in the Government's best interest.

In addition, a Notice of Intent to Sole Source will be posted to Contract Opportunities on SAM.gov to satisfy FAR 5 posting requirements.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** The Contracting Officer will evaluate WBRC's proposal to ensure pricing is fair and reasonable based on an independent government estimate (IGE), comparison to historical pricing under previously awarded contracts of similar scope as well as previously awarded contracts with WBRC.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Comprehensive market research was conducted; however, this requirement is uniquely tied to an assessment previously performed by WBRC. The specialized knowledge, experience, and familiarity that WBRC possesses regarding the project's existing conditions cannot be easily replicated or transferred to another A/E firm without incurring a significant learning curve. Retaining WBRC ensures continuity of expertise across all phases of the project, which directly benefits the Government by minimizing the risk of future delays, errors, or omissions. WBRC's retained historical project information and familiarity with site-specific conditions are critical to the successful completion of the required Engineering Services. Accordingly, it is in the Government's best interest to engage the same A/E firm that performed the initial assessment, thereby avoiding unnecessary additional costs and inefficiencies.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** Failure to maintain continuity of this follow-on requirement directly jeopardizes the timely completion of the Neuroscience Research Renovation project and could impact delivery of care to Veterans. Sole sourcing this requirement ensures seamless support to the logical follow-on requirement and avoids substantial additional expenditures.
10. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** Future A/E requirements for upcoming projects will be competed to the maximum extent practicable. This sole-source action is a logical follow on specific to the unique circumstances of the Neuroscience Research Renovation project and the prior involvement of WBRC.
11. **Contracting Officer Certification (required):** I certify that the requirement outlined in this justification is a bona fide need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Prepared by:

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Alexis Duda
Contract Specialist

Approved by:

HEATHER

LIBISZEWSKI-GALLIEN

Heather Libiszewski-Gallien

Contracting Officer

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